

Tentative Rulings for August 13, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

Begin at the next page

(49)

Tentative Ruling

Re: ***Mejia v. Poindexter Nut Company, Inc.***
Superior Court Case No. 23CECG03574

Hearing Date: August 13, 2026 (Dept. 503)

Motion: By Defendant Poindexter Nut Company, Inc.'s Counsel to be
Relieved as Counsel

Tentative Ruling:

To deny without prejudice. (Cal. Rules of Ct., Rule 3.1362.)

Explanation:

Counsel for defendant Poindexter Nut Company, Inc. ("Counsel") has moved to be relieved as counsel of defendant Poindexter Nut Company, Inc.

"A notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel - Civil (form MC-051)." (Cal. Rules of Ct., Rule 3.1362(a).) "Notwithstanding any other rule of court, no memorandum is required to be filed or served with a motion to be relieved as counsel." (*Id.*, Rule 3.1362(b).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel - Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (*Id.*, Rule 3.1362(c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (*Id.*, Rule 3.1362(e).)

Forms MC-051, MC-052, and MC-053 must be used for a motion to be relieved as counsel. Counsel did not use those forms. Accordingly, the motion to be relieved as counsel is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re:

Galvan v. City of Clovis
Superior Court Case No. 24CECG05613

Hearing Date:

August 13, 2026 (Dept. 503)

Motion:

By Plaintiff's Counsel to Withdraw
By Defendant City of Clovis for Summary Judgment

Tentative Ruling:

To continue both motions to Tuesday, September 8, 2026 at 3:30 p.m. in Department 503. Plaintiff's counsel shall refile the motion to withdraw on the mandatory Judicial Council forms, along with a supplemental declaration more clearly explaining counsel's efforts to find locate a personal representative or successor in interest.

Explanation:

Set concurrently are two motions – one by the City of Clovis for summary judgment, and another by plaintiff's counsel to withdraw. The motion for summary judgment is unopposed, but only because plaintiff has passed away. Because the plaintiff has passed, counsel seeks to withdraw, having no client.

Regarding the motion to withdraw, the court initially notes that the moving papers are not filed on the required Judicial Council forms. (See Cal. Rules of Court, rule 3.162(a), (c).) These forms must be used.

Ordinarily the notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. Counsel must confirm the last known address for service. (Cal. Rules of Court, rule 3.162(d).) Obviously this case presents a different situation, with plaintiff having passed away. Service on a deceased client is not possible. However, before granting the motion to withdraw or ruling on the motion for summary judgment, the court would like to see evidence of plaintiff's death (death certificate if it can be obtained), so as to excuse counsel from the requirement of serving the client and confirming their last known address.

Counsel's declaration is somewhat ambiguous with regards to the efforts made to determine if there is an heir or successor in interest to substitute as plaintiff and carry on this action. "A pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc., § 377.21.) "A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.30.) If there is no personal representative, the action may be maintained by the decedent's "successors in interest" (persons entitled to inherit the claim). (Code Civ. Proc., §§ 377.30, 377.34.)

Counsel states that he was informed of plaintiff's death by his stepmother (and designated emergency contact), Rita Bonilla. (Saleh Decl., ¶ 6.) Counsel has had continued contact with Ms. Bonilla. (Saleh Decl., ¶ 7.) Counsel states that "Plaintiff's death has been confirmed," but he does not know the date. (Saleh Decl., ¶ 12.) He states that his "office continues to make reasonable efforts to obtain documentation concerning Plaintiff's death, including a certified death certificate, if available." (Saleh Decl., ¶ 13.) Counsel states that he is "informed and believe[s] that no executor, administrator, personal representative, or successor-in-interest has been appointed or otherwise identified." (Saleh Decl., ¶ 9.) This is the point on which the court requests elaboration. Counsel shall continue to seek to identify an heir or successor-in-interest, and clearly explain to the court what efforts have been made in a supplemental declaration. Once the court is satisfied that there is no client to carry on this action, the court will grant the motion to withdraw and rule on the motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026 .
(Judge's initials) (Date)

(41)

Tentative Ruling

Re: **Jonathan Ledesma-Luna v. General Motors LLC**
Superior Court Case No. 24CECG05553

Hearing Date: August 13, 2026 (Dept. 503)

Motion: By Defendant General Motors LLC for Summary Judgment or Summary Adjudication

Defendant's counsel, Austin Abernathy, is ordered to appear in person at the hearing and to bring a full copy of the case, *Sweetin v. County of Nevada* (2023) 89 Cal.App.5th 1041, cited on page 4 of the reply. Counsel must highlight all supporting language corresponding to the pinpoint citation attributed to pages 1052-1053.

Tentative Ruling:

To deny defendant's motion for summary judgment, and the alternative motion for summary adjudication.

Explanation:

On February 22, 2023, the plaintiff, Jonathan Ledesma-Luna (Plaintiff), purchased a new 2023 Chevrolet Silverado (Silverado). Plaintiff paid \$118,178.40 for the Silverado. On December 23, 2024, Plaintiff filed a complaint (Complaint) against the manufacturer, General Motors LLC (GM), seeking remedies under the Song-Beverly Consumer Warranty Act (the Act or Song-Beverly). Plaintiff alleges the following three causes of action against GM: (1) breach of express warranty; (2) breach of implied warranty of merchantability; and (3) violation of Civil Code section 1793.2, subdivision (b). GM now moves for summary judgment or summary adjudication

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting

evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*.) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

GM Fails to Satisfy Its Initial Burden

The Act, popularly known as the "lemon law," provides various remedies to buyers of defective motor vehicles. The Act includes Civil Code section 1793.2, which governs a manufacturer's repair duties for an express warranty. GM moves for an order granting summary judgment, and alternatively, summary adjudication on the ground that GM promptly offered to repurchase Plaintiff's vehicle, satisfying its duties under the Act.

First Cause of Action – Breach of Express Warranty

For his first cause of action Plaintiff alleges he is entitled under the Act to reimbursement of the price paid for the vehicle less an amount directly attributable to use by the Plaintiff prior to the first presentation of nonconformities. (Comp., ¶ 31.) The Act provides that "[i]f the vehicle cannot be repaired, the manufacturer must offer to replace or repurchase the vehicle from the consumer." *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 878, citing Civ. Code, § 1793.2, subd. (d) (*Carver*.)

Civil Code section 1793.2, subdivision (d) 2) provides:

If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle.

The elements Plaintiff must prove to succeed on his breach of warranty claim are as follows:

(1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle's use, value, or safety to a reasonable person in plaintiff's shoes (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure to repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle from the plaintiff (the failure to replace or repurchase element).

(*Carver, supra*, 107 Cal.App.5th at p. 879.) In *Carver*, the manufacturer prevailed on summary judgment by establishing that the manufacturer's offer, made 23 days after plaintiff's first request for repurchase, was not only prompt, but also complied with the Act's provisions. The court also noted other courts have found reasonably prompt repurchase offers to occur 40 to 50 days after the manufacturer's obligation to repurchase arises. (*Id.* at p. 880.)

Here, GM contends it is entitled to summary judgment because Plaintiff cannot prove the failure to repurchase element. GM contends its provided a prompt repurchase offer that complies with the Act. Plaintiff contends GM is not entitled to summary judgment because its repurchase offer improperly calculated the mileage use offset, therefore, the offer does not comply with the Act.

In *Carver*, the plaintiff contended the use-offset amount was incorrect because the manufacturer used the wrong value for the subject vehicle in its calculations. (*Carver, supra*, 107 Cal.App.5th at p. 882.) The trial court granted the manufacturer's summary judgment motion, and the appellate court affirmed the judgment, concluding "there was no error in using the agreed-upon value of the vehicle as reflected in the lease to calculate the mileage offset." (*Carver*, 107 Cal.App.5th at p. 884.) Here Plaintiff contends GM used the wrong date for its use-offset calculations.

Civil Code section 1793.2, subdivision (d)(2) requires the manufacturer to calculate a use offset for mileage by using a specific formula as set forth in subsection (C):

(C) ... When restitution is made pursuant to subparagraph (B), the amount to be paid by the manufacturer to the buyer may be reduced by the manufacturer by that amount directly attributable to use by the buyer prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. *The amount directly attributable to use by the buyer shall be determined by multiplying the actual price of the new motor vehicle paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, by a fraction having as its denominator 120,000 and having as its numerator the number of miles traveled by the new motor vehicle prior to the time the buyer first delivered the vehicle to the manufacturer or*

*distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity.*¹

(*Ibid.*, italics added.)

If a defendant fails to address an issue in a motion for summary judgment that has been raised in the plaintiff's complaint, the defendant fails to meet the initial burden to show the plaintiff's action has no merit. (*Hedayati v. Interinsurance Exchange of the Automobile Club* (2021) 67 Cal.App.5th 833, 846.) Here, Plaintiff alleges he "first presented the [Silverado] for repairs in April 2023, with approximately 1,158 miles on the odometer and reported the 'Service Axle Lockers' [warning] message appearing on the instrument cluster." (Comp., ¶ 11.) Plaintiff also alleges:

In May 2024, with approximately 9,689 miles on the odometer, Plaintiff presented the [Silverado] again and reported another instance of delayed and harsh gear shifting. Additionally, the "Service Axle Lockers" message appeared **for the third time**.

(Comp., ¶ 14, emphasis original.) To prevail on summary judgment by establishing that its repurchase offer complies with the Act, GM must address the issue of when Plaintiff first presented the Silverado for correction of the problem that gave rise to the nonconformity.

GM argues "Plaintiff does not dispute that he submitted a repurchase request on June 13, 2024, and just **19 days later**, on July 2, 2024, GM sent Plaintiff a repurchase offer." (Rpy., p. 3:11-12, emphasis original.) While this fact might be relevant to determine the promptness of the repurchase offer, it has no relevance to the offset formula, which includes as a variable the date when Plaintiff "first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity." (Civ. Code, § 1793.2, subd. (d)(2)(C).) The court finds GM fails to satisfy its initial burden because the eight facts in GM's separate statement do not establish that GM's repurchase offer complies with the Act. GM fails to include a starting date for the mileage calculation and fails to identify the problem that gave rise to the nonconformity. Without the starting date and the identity of the problem that gave rise to the nonconformity, the court cannot determine whether GM complied with the statutory formula.

¹Civil Code section 1793.2, subdivision (d)(2), subsection (B) provides:

In the case of restitution, the manufacturer shall make restitution in an amount equal to the actual price paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, but excluding nonmanufacturer items installed by a dealer or the buyer, and including any collateral charges such as sales or use tax, license fees, registration fees, and other official fees, plus any incidental damages to which the buyer is entitled under Section 1794, including, but not limited to, reasonable repair, towing, and rental car costs actually incurred by the buyer.

GM fails to address an issue that Plaintiff raised in the complaint, therefore, GM fails to meet its initial burden to show Plaintiff's action has no merit. (*Hedayati v. Interinsurance Exchange of the Automobile Club, supra*, 67 Cal.App.5th at p. 846.) When the defendant fails to make the initial showing, it is unnecessary to review the plaintiff's opposing evidence and the court must deny the motion. (*Aguilar, supra*, 25 Cal.4th at p. 849.) Therefore, the burden does not shift to Plaintiff to raise a triable issue of fact and the court may stop its analysis of the first cause of action here.

Second Cause of Action – Breach of Implied Warranty

GM contends "Plaintiff's implied warranty claim also fails because Plaintiff cannot prove that he suffered any damages, an essential element of Plaintiff's claim." (Memo., p. 9:1-2.) GM again relies on *Carver*, where the court determined the plaintiff could not recover for breach of the implied warranty of merchantability because the plaintiff could not recover more than the manufacturer's Act-compliant restitution offer. Here, GM fails to establish that its restitution offer complies with the Act. Thus, GM fails to meet its initial burden to show Plaintiff cannot prove the essential element of damages as to the second cause of action, and the burden does not shift to Plaintiff to raise a triable issue of material fact.

Third Cause of Action - Violation of Civil Code Section 1793.2, Subdivision (b)

Plaintiff's third cause of action arises under Civil Code section 1793.2, subdivision (b), which governs a manufacturer's repair duties for an express warranty. GM contends it is entitled to summary adjudication as to Plaintiff's third cause of action because its repurchase offer complies with the Act. In its separate statement, GM provides no additional facts as to the third cause of action and expressly states the eight facts presented are common to all issues. GM's evidence fails to meet its initial burden of persuasion and production to show, as a matter of law, that Plaintiff cannot prove an essential element of the third cause of action. Therefore, the burden does not shift to Plaintiff to raise a triable issue of material fact as to the third cause of action.

Evidentiary Standard and Objections

In its reply, GM fails to address the critical variables required to determine if GM's offer complies with the statutory formula. Also, GM misstates its own evidentiary standard as the moving party on summary judgment motions in California as follows:

At the summary judgment stage, evidence need[] not be in trial-admissible form so long as it is reasonably capable of being presented in admissible form at trial. (*Sweetin v. County of Nevada* (2023) 89 Cal.App.5th 1041, 1052–53.)

The court has been unable to locate the cited "*Sweetin*" case. Although GM's authority may be correct in the federal courts,² that is not the standard in California. In

²For example, in *Block v. City of Los Angeles* (9th Cir. 2001) 253 F.3d 410, the court addressed the evidentiary standard as follows: "To survive summary judgment, a party does not necessarily have to produce evidence in a form that would be admissible at trial, as long as the party satisfies the

California, Code of Civil Procedure, section 437c, subdivision (d) expressly requires "admissible evidence" at the summary judgment stage:

Supporting and opposing affidavits or declarations shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavits or declarations. An objection based on the failure to comply with the requirements of this subdivision, if not made at the hearing, shall be deemed waived.

On summary judgment, opposing declarations are liberally construed, while the moving party's evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) "The rule that a trial court must liberally construe the evidence submitted in opposition to a summary judgment motion applies in ruling on both the admissibility of expert testimony and its sufficiency to create a triable issue of fact." (*Garrett v. Howmedica Osteonics Corp.* (2013) 214 Cal.App.4th 173, 189.)

The court declines to rule on the parties' evidentiary objections because none are material to the disposition of GM's motion. (Code Civ. Proc., § 437c, subd. (q).) Furthermore, objections must be submitted in the proper format required by California Rules of Court, rule 3.1354 (filed separately, numbered consecutively, quoting the objectionable material, and clearly stating the grounds for objections).

Request for Judicial Notice

The court denies Plaintiff's request for judicial notice of the unsigned and unfiled tentative rulings on other motions in other courts. (See, *People v. Preslie* (1977) 70 Cal.App.3d 486, 495 [denying request for judicial notice not accompanied by certified copy of documents desired to be noticed].)

Conclusion

When the moving party fails to make the initial showing, it is unnecessary to review the opposing party's evidence and the court must deny the motion. (*Aguilar, supra*, 25 Cal.4th at p. 849-850; *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 940 [defendant's motion for summary judgment should have been denied without looking at opposing evidence because defendant failed to refute tenable pleaded theories].) Here, the burden here does not shift to Plaintiff to raise a triable issue of fact and the court may stop its analysis here.

Furthermore, the court denies GM's motion for the additional reason that Plaintiff raises at least one triable issue of material fact about the date he first presented the Silverado for repair and reported the "Service Axle Lockers" warning message appearing on the instrument cluster. (See Pltf.'s Fact Nos. 3, 4, 5.) Therefore, the court denies GM's

requirements of Federal Rules of Civil Procedure 56." (*Id.* at pp. 418-419, citing *Celotex Corp. v. Catrett* (1986) 477 U.S. 317, 324.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***In re: Khalil Jordan Washington***
Superior Court Case No. 25CECG05340

Hearing Date: August 13, 2026 (Dept. 503)

Motion: Expedited Petition to Compromise Claim of Minor

Intended Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

Explanation:

According to the amended petition, the minor has fully recovered from injuries including emotional distress and trouble sleeping, following a car collision on March 17, 2025. The minor is to receive a gross settlement of \$30,000 with the balance of the settlement after medical costs, attorney fees and litigation costs to be deposited in a blocked account. An issue with respect to costs to be paid from the settlement remains and prevents approval.

The amended petition requests expenses in the amount of \$743.80 from the settlement including a "Court Blocked Acct. Fee" in the amount of \$175. The court is aware of no such a fee associated with the creation of a blocked account and does not find it reasonable to charge the fee against the minor's recovery without explanation as to what the fee is and to whom it is paid. (Prob. Code, § 3601.)

The court issued an intended ruling on July 27, 2026 identifying the above issues and allowing the filing of an amended petition in anticipation of the hearing set for August 13, 2026. The amended petition filed fails to provide an adequate explanation of the \$175 fee counsel is seeking as a "Court Blocked Acct. Fee." Accordingly, the amended petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Hernandez v. Nava et al.***
Superior Court Case No. 26CECG00773

Hearing Date: August 13, 2026 (Dept. 503)

Motion: By Plaintiff Maribel Hernandez to Compel Defendant Alvaro Nava's Response to Request for Production of Documents, Set One, and Order for Sanctions

Tentative Ruling:

To continue plaintiff Maribel Hernandez's motion to compel defendant Alvaro Nava's response to Requests for Production of Documents, Set One to September 10, 2026 at 3:30 p.m. in Department 503. Plaintiff is to file a supplemental declaration authenticating and attaching copies of Plaintiff's Request for Production of Documents, Set One and proof of service by September 3, 2026.

Explanation:

Plaintiff Maribel Hernandez ("Plaintiff") moves to compel initial responses from defendant Alvaro Nava ("Defendant") for Plaintiff's Request for Production of Documents, Set One ("Set One"). Counsel for Plaintiff's declaration indicates counsel intended to attach a copy of Set One and the proof of service on Defendant of Set One to counsel's declaration. (Harris Decl., ¶ 2.) However, Set One and the proof of service were not attached. The court cannot grant the motion without authenticated copies of these documents. Accordingly, the motion to compel responses to Set One is continued to September 10, 2026 at 3:30 p.m. in Department 503, to allow time for Plaintiff to file a supplemental declaration that authenticates and attaches a copy of Set One and the proof of service of Set One. Plaintiff is to file the supplemental declaration with the attached documents by September 3, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 08/10/2026.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Michael Williams v. Tracy Agrall**
Superior Court Case No. 25CECG04193

Hearing Date: August 13, 2026 (Dept. 503)

Motion: Demurrer and Motion to Strike

Tentative Ruling:

To overrule the demurrer. To grant the motion to strike those items specified in the Notice of Motion, with leave to amend. Plaintiff is granted 10 days' leave to file an amended complaint; the time in which the complaint may be amended will run from service of the order by the clerk. New allegations/language must be set in boldface type.

Explanation:

Demurrer

"The applicable statute of limitations for legal malpractice claims is section 340.6." (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 110, 103 Cal.Rptr.3d 811.) It provides that a malpractice action must be commenced "within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission...." (§ 340.6, subd. (a).) The running of the statute of limitations is tolled during the time that "[t]he attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred." (*Id.* subd. (a)(2); see also *Beal Bank, SSB v. Arter & Hadden, LLP* (2007) 42 Cal.4th 503, 505, 66 Cal.Rptr.3d 52, 167 P.3d 666 ["Under California law, the statute of limitations for attorney malpractice claims arising from a given matter is tolled for the duration of the attorney's representation of the client in that matter"].) The tolling is referred to as "the continuous representation exception." (*Id.*, at p. 511, 66 Cal.Rptr.3d 52, 167 P.3d 666; *Truong v. Glasser, supra*, 181 Cal.App.4th at p. 115, 103 Cal.Rptr.3d 811.) "Code of Civil Procedure section 340.6 does not expressly state a standard to determine when an attorney's representation of a client regarding a specific subject matter continues or when the representation ends, and the legislative history does not explicitly address this question." (*Gonzalez v. Kalu* (2006) 140 Cal.App.4th 21, 28, 43 Cal.Rptr.3d 866.)

(*GoTek Energy, Inc. v. SoCal IP Law Group, LLP* (2016) 3 Cal.App.5th 1240, 1245–1246.)

The Complaint in this action was filed on September 8, 2025. Defendants contend that the representation ended on July 8, 2024, over a year prior to the filing, when

Defendants substituted out of the Trust proceedings.³ Defendants argue this is sufficient to demonstrate there was no continuing representation.

Plaintiff retained Defendants in or about 2020-2021 to represent him in connection with a merger of CWES, Inc. into the Laura Williams Survivor's Trust. (Compl., ¶ 9.) In or about April 2024, Defendants also undertook representation of him in defending against a petition connected to trust litigation of the Laura Williams Survivor Trust. (*Id.*, ¶¶ 12-13.) Plaintiff alleges that Defendants (1) failed to advise him that the Trust required an independent evaluation of CWES, Inc. prior to the merger and failed to obtain the independent evaluation; and (2) in 2025, negligently advised Plaintiff to enter into a settlement agreement regarding the issues raised by the petition and failed to protect his interests. (*Id.*, ¶¶ 12, 15-16, 27.) Plaintiff alleges that he discovered such professional negligence and legal malpractice in December 2024. (*Id.*, ¶ 8.) The present action was filed on September 8, 2025, less than a year later.

Defendants argue that Plaintiff knew or should have known about the facts giving rise to his malpractice claim prior to September 8, 2024, as Plaintiff knew he was defending against allegations concerning his role as co-trustee of the Trust, and should have known from his successor counsel in July 2024. Any actual injury suffered was no later than April 10, 2024, when the petition against him was filed in the trust litigation.

Plaintiff opposes⁴ the demurrer and argues that although Defendants were formally substituted out of the underlying action, Ms. Agrall continued to encourage him to telephone her whenever he had questions and remained responsive to his calls and e-mails; she purportedly did not tell Plaintiff that she could not or would not advise him concerning the Trust after substitution. He asserts that Ms. Agrall continued providing guidance on the related Trust and corporate matters after her formal substitution. (See Opp., ¶¶ 15-16, 24.)

On a demurrer, a court's function is limited to testing the legal sufficiency of the complaint. A demurrer is simply not the appropriate procedure for determining the truth of disputed facts. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.) In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 883.) On general demurrer, the court determines if the essential facts of any valid cause of action have been stated. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572; Code Civ. Proc. § 430.10 subd. (e).) A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate fact; the pleading is adequate if it apprises defendant of the factual basis for plaintiff's claim. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

Defendants filed a substitution of counsel on July 8, 2024. (RJN, ¶ 1, Exh. A.) However, the Complaint alleges that Defendants continued to advise him on Trust matters until at least 2025, which is well beyond the one year statute of limitations prior to filing this action. (Compl., ¶ 15.) Filing a substitution of attorneys does not, as a matter of law, end representation. (Code Civ. Proc., § 340.6, subd. (a)(2); see *Shaoxing City*

³ Defendants' Request for Judicial Notice may be granted.

⁴ The court in its discretion will consider the late filed opposition.

Maolong Wuzhong Down Products, Ltd. v. Keehn & Associates, APC (2015) 238 Cal.App.4th 1031, 1039.) Plaintiff further alleges in the Complaint that his discovery of the facts underlying his claims did not occur until December 2024, still within the one-year timeframe. (*Id.*, ¶ 8.) On demurrer, the court assumes the truth of the facts alleged in the Complaint. While Defendants dispute the truth of these allegations, they have been alleged in the Complaint and their truth is not at issue on demurrer. Plaintiff at this stage need only plead ultimate fact and not evidentiary facts. "At this stage, [...] without any development of the facts, we cannot conclude that section 340.6(a) necessarily bars [Plaintiff's] claim." *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.) The court intends to overrule the demurrer.

Motion to Strike

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145; *Kaiser Foundation Health Plan, Inc. v. Superior Court* (2012) 203 Cal.App.4th 696.)

Defendants move to strike from the Complaint the prayers for exemplary, general, treble, punitive, and emotional distress damages, as well as the request for prejudgment interest. These types of damages are either statutorily authorized (i.e. treble damages) or must be supported by specific factual allegations of malice, oppression, fraud, or more than financial harm (e.g. a liberty interest at stake). Such specifics are not presently alleged in the Complaint, and the court intends to grant the motion to strike the requested items, with leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/11/2026.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Boys & Girls Clubs of Fresno County v. The Optimist Boys Club of Fresno, Inc., et al.***
Superior Court Case No. 25CECG02004

Hearing Date: August 13, 2026 (Dept. 503)

Motion: Application for Default Judgment

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 761.020.)

Explanation:

Statutory Elements of Quiet Title Not Well Pled

The complaint shall be verified and shall include all of the following:

(a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. **In the case of real property, the description shall include both its legal description and its street address or common designation, if any.**

(b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.

(c) The adverse claims to the title of the plaintiff against which a determination is sought.

(d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff against the adverse claims.

(Code Civ. Proc., § 761.020, emphasis added.)

Although a legal description is included in the verified complaint, it does not appear that plaintiff has pled the common designation of the property. Moreover, in the court's view, in the case of real property, a common designation is likely to be more

effective notice, since a layperson may not immediately recognize the legal description of a property.

Unless plaintiff provides authority excusing adherence to Code of Civil Procedure section 761.020, the court intends to deny the application for default judgment for failure to plead a statutory element.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/11/2026.
(Judge's initials) (Date)